



**M Resources and Golden Energy and Resources –
Tahmoor Coal Mine**

MN-10022

Phase 1 Determination

Acquisition may be put into effect

21 August 2026

1. Determination and statement of reasons

Notified acquisition	Golden Energy and Resources Pte Ltd (GEAR) and M Resources Pty Ltd (M Resources) (together, the Consortium) propose to acquire, via a jointly owned special purpose vehicle, the assets of the insolvent Tahmoor Colliery (Tahmoor) (together, the Parties). Tahmoor is a coal mine in the Illawarra region of NSW. The relevant assets include the mining rights, plant and equipment, real estate and a 16.67% equity interest in Port Kembla Coal Terminal Limited.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquiring entity, Golden M Tahmoor Coal Holdings Pty Ltd, will ultimately be owned 70% by GEAR (or related entities) and 30% by M Resources (or related entities / persons). GEAR and M Resources are part of an existing consortium, GM3, which operates the Appin and Dendrobium coal mines in the Illawarra region (through Illawarra Coal Holdings Pty Ltd) and has an existing minority interest in the Port Kembla Coal Terminal (together, the GM3 Assets). GEAR has a 51% economic interest in the GM3 Assets and M Resources has 7%. GEAR is a Singaporean based resources company. Its activities in Australia involve gold mining and metallurgical (coking) coal production, through the GM3 Assets and a 59% shareholding in Stanmore Resources Limited (Stanmore), which produces coal in Queensland. M Resources is an Australian based coal trader and logistics provider. It has interests in various businesses which service coal mines, including Mastermyne Limited, One Rail Australia Holdings Limited, Merald, M Critical Minerals and Stanmore. None of M Resources businesses interact with mines in the Illawarra region except for the GM3 Assets. Tahmoor produces coking coal and small amounts of thermal coal for domestic and export customers. Tahmoor has been inoperative since late 2024 and is in liquidation.
Overlap and relationship between the Parties	The Parties overlap in the production and supply of thermal and coking coal in the Illawarra region. GM3 and Tahmoor, before it ceased operating, both supplied coal to export customers as well as BlueScope Steel Limited (BlueScope), based in Port Kembla. Historically, GM3 also acquired coking coal from Tahmoor to supply export customers.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the

	interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The Acquisition is unlikely to have an adverse impact on the only domestic consumer of coking coal, taking into account long-term supply arrangements being put in place and export customers of coking coal have a range of alternative options. • The aggregation in the supply of thermal coal resulting from the Acquisition is low, and both domestic and export customers have a range of alternative suppliers of thermal coal post-acquisition. • The merged entity is unlikely to have the ability and incentive to foreclose rivals' access to the Port Kembla Coal Terminal given the merged entity would not have a controlling interest post-acquisition.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act